

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 25-004

**Amendments to Title 6, Chapter 3 Section 6-307.1 of the Chickasaw Nation Code
(Jurisdiction over Adoptions)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules for the Chickasaw Nation District Court, and

WHEREAS, the Chickasaw Tribal legislature desires to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6, Chapter 3 Section 6-307.1 of the Chickasaw Nation Code, all other sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 6-307.1 JURISDICTION OVER ADOPTIONS.

A. The Court shall have ~~exclusive~~ concurrent jurisdiction with the courts of any other sovereign having lawful authority regarding the adoption of any Adult Indian who resides or is domiciled within the jurisdiction of the Court.

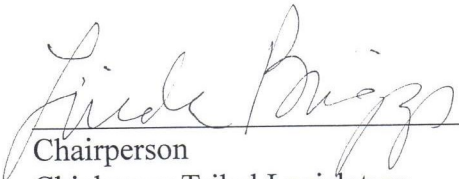
B. The Court shall have ~~exclusive~~ concurrent jurisdiction with the courts of any other sovereign having lawful authority regarding the adoption of any person who resides or is domiciled within the jurisdiction of the Court, is unmarried, less than eighteen (18) years of age, and either:

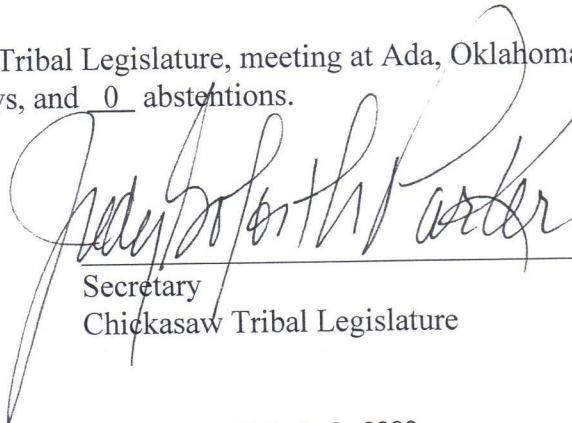
1. is a member of an Indian tribe;
2. is eligible for membership in an Indian tribe, and is the biological Child of a member of an Indian tribe; or
3. is one whose case has been transferred to the Court from the courts of a state, or tribe which has assumed jurisdiction over said Child; or

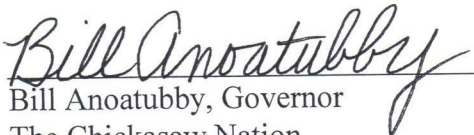
C. The Court shall have ~~concurrent~~ exclusive jurisdiction with the courts of any other ~~sovereign having lawful authority~~ regarding the adoption by or of any other Child or Adult who is a bonafide resident of or domiciled within the jurisdiction of the Court and a citizen of the Chickasaw Nation or eligible for citizenship of the Chickasaw Nation.

D. ~~The Court shall have concurrent jurisdiction with the courts of any other sovereign having lawful authority regarding the adoption between two Adults who submit to the jurisdiction of the court regardless of residence or domicile."~~

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 16, 2008, by a vote of 11 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUN 20 2008

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 25-004
Amendments to Title 6, Chapter 3 Section 6-307.1 of the Chickasaw Nation Code
(Jurisdiction over Adoptions)

Explanation: This resolution amends Title 6, Chapter 3 Section 6-307.1 (Jurisdiction over Adoptions) so that it clarifies the jurisdiction of the Chickasaw Nation District Court regarding adoptions. This resolution was requested by the District Court Judge.

Presented By: Court Development Committee
Tim Colbert, Committee Chair